

POLICY BRIEF & DRAFT LEGISLATION

THE KENIA PERAZA ACT

Federal Land Educational Opportunity

Department of Technology | Draft Congressional Bill | Deployment Appendices

A constitutional framework to establish the U.S. Department of Education as a direct public charter school authorizer on eligible Federal land, providing working-class and minority families trapped in failing school districts with a sovereign, politically independent pathway to educational choice.

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PART 1 — DEPARTMENT OF TECHNOLOGY

OPINION | DOT

California's School Monopoly Has a 48-Million-Acre Loophole

The federal government owns nearly half of California. It's time to put that land to work for the families Sacramento has abandoned.

In San Ysidro, California—a working-class border community wedged between San Diego and Tijuana—the Sweetwater Union High School District earned a “D” grade from state accountability assessments in recent years, with chronic absenteeism rates exceeding 30% at several campuses. Parents who dared petition for a charter school alternative were handed a polite bureaucratic obituary: denied on grounds of “fiscal impact to the district.” Not academic quality. Not community need. Fiscal impact. The district was protecting its revenue stream. The children were collateral.

This is California's public education compact in miniature: a state apparatus that has systematically converted school boards into enforcement arms of the status quo, armed by legislation like AB 1505, which explicitly permits local boards to reject charter petitions if they determine the school would harm the district's finances. In a stroke, Sacramento gave educational monopolists the legal cover to block competition using money as the moral argument. Quality is irrelevant. Politics is everything.

There is a way out. It is 47.8 million acres wide.

The Geography of Opportunity

The federal government owns approximately 48% of California's total land mass—a staggering sovereign footprint that includes military installations, national forests, Bureau of Land Management holdings, and General Services Administration (GSA) properties scattered across the state from the Oregon border to the Mexican frontier. This land is not subject to Sacramento's school board politics. It is not subject to AB 1505. It answers to one authority: Congress.

For decades, this federal presence has been framed as a burden—land removed from local tax rolls, governed by distant bureaucrats, generating community friction rather than community benefit. That framing is wrong, and the education crisis facing California’s working families demands we correct it. The federal footprint is not a liability. Strategically deployed, it is the largest untapped school choice corridor in America.

The San Ysidro Case Study

Consider what sits within a few miles of San Ysidro’s trapped student population: Naval Outlying Landing Field Imperial Beach, a military installation with buffer zones and associated GSA-managed parcels that are functionally underutilized for significant portions of the calendar year. These federal enclaves are sovereign ground. They sit physically within the communities where thousands of lower-income, predominantly Hispanic families are locked in failing schools—yet they exist entirely outside the jurisdiction of the Sweetwater board or the San Ysidro School District.

A family in San Ysidro making \$45,000 a year cannot afford a private school. They cannot move to a better zip code. Their charter petition gets denied so the district can protect its per-pupil funding. Their child sits in a school that the state itself grades as failing. And two miles away, federal land sits dormant. This is not a resource problem. It is a political problem with a geographic solution.

The Constitutional Architecture

Critics will invoke federalism. The answer is Article IV, Section 3, Clause 2 of the Constitution—the Property Clause—which grants Congress plenary, exclusive authority over federal territory and property. The Supreme Court has repeatedly affirmed that this authority is without limitation from state law. When Congress acts on federal land, California’s education code is a suggestion, not a constraint.

This is not a seizure of state prerogative. States retain full authority over their own land. The federal government is proposing to use its property for a legitimate public purpose: educating the children of American citizens who have been systematically denied alternatives by state-sanctioned monopolies. If California’s political establishment believes it has a superior claim to govern education on federal military buffer zones, it is welcome to make that argument in federal court. It will lose.

The Property Clause is not an emergency override to be invoked lightly. But when state-level regulatory capture has closed every conventional door to educational choice for minority and working-class families, the federal government has not merely the authority but the obligation to open a different one.

The Logistics Are Solvable

The most practical objection is speed. How do you build schools on federal land without triggering California's Field Act and years of zoning litigation? You don't build. You deploy.

Modular, prefabricated school structures meeting International Building Code standards can be placed on federal land without triggering California Field Act jurisdiction, which applies to state-regulated school districts, not federal entities. GSA has existing frameworks for modular structures on federal property. A functional, high-quality K–8 campus can be operational within 8 to 14 months of authorization. The permitting wall that Sacramento uses to delay and discourage school construction simply does not exist on federal sovereign property.

Funding follows the same logic. The federal Impact Aid program—already designed to compensate schools serving federally connected populations—can be restructured to channel per-pupil dollars directly to federally authorized charter schools, creating complete financial independence from California's school finance system. Sacramento cannot starve what Sacramento does not fund.

The Governance Is the Point

What distinguishes this framework from a top-down Federal imposition is its foundational democratic architecture. Every school authorized under the Kenia Peraza Act will be governed by five elected Trustees—not appointees, not bureaucrats, not Sacramento functionaries. Elected. By the parents and staff of the school itself. Each Trustee must live in the community the school serves. Each is limited to four two-year terms. The board is accountable to precisely one constituency: the families who chose to be there.

The integrity of that elected board depends entirely on who is permitted to sit on it. The Kenia Peraza Act is unambiguous: no school employee—not a teacher, not an administrator, not a union representative from any school in the district—may run for or serve as a Trustee. The 24-month cooling-off period runs in both directions: recent employees cannot seek board seats, and departing Trustees cannot accept school employment for two years after leaving. A governing board that can be captured by the very workforce it is meant to oversee is not a governing board. It is a staff committee with a seal.

Critically, these schools will not be required to administer California's state assessments. This is not a retreat from accountability—it is a structural firewall against it becoming a weapon. Federally authorized schools will administer rigorous, nationally norm-referenced assessments reviewed by a Federal oversight office that answers to Congress, not to Sacramento.

And the school's leadership will be chosen by that same elected board on a single criterion: demonstrated competence. No state administrator credential. No mandatory university preparation program. The Kenia Peraza Act asks one question of its superintendents and principals: can you run an excellent school and serve these families? A retired Marine officer

who built high-performance training programs. A corporate executive who led workforce development for thousands of employees. A classroom teacher who spent a decade producing exceptional results. All eligible. All evaluated on evidence of what they have actually accomplished.

Professional experience working with children in K–12 schools is not a consolation pathway under this Act. It is declared sufficient. A teacher with three years of classroom experience, a school counselor who built a student support program, a department head who turned around a struggling academic division—each qualifies on the strength of that professional service alone. The families of San Ysidro deserve leaders chosen for them, not leaders licensed for the system.

The Choice Is Moral, Not Merely Political

Opponents will call this an assault on public education. It is the opposite. It is a defense of public education's original purpose: giving every child, regardless of zip code or family income, access to a school that serves their future rather than a bureaucracy's budget.

The families of San Ysidro are not asking for vouchers or the elimination of public schools. They are asking for one thing Sacramento has spent years denying them: a choice. The federal government has 48 million acres of California on which to give it to them. The question is whether Washington has the will to match its geography.

The author writes on federal education policy and constitutional law.

PART 2 — DRAFT CONGRESSIONAL BILL

IN THE CONGRESS OF THE UNITED STATES

118th Congress, 2d Session

(Illustrative Draft — For Policy Discussion Purposes)

A BILL

To amend the Department of Education Organization Act to authorize the Secretary of Education to approve and oversee public charter schools on eligible Federal land, to establish a Federal per-pupil funding mechanism for such schools, and for other purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the “**Kenia Peraza Act**” or the “**KPA**”.

SECTION 2. FINDINGS AND PURPOSES.

(a) FINDINGS.

Congress finds and declares the following:

1. In states where the Federal government holds substantial land interests, including California, where Federal ownership encompasses approximately 47.8 million acres representing nearly 48 percent of the state’s total land mass, state and local education regulatory frameworks have failed to provide meaningful public school choice to lower-income and minority families residing in or adjacent to federally impacted communities.

2. Legislation enacted at the state level, including California Assembly Bill 1505 (2019), has

granted local educational agency governing boards explicit statutory authority to deny charter school petitions based on projected fiscal impact to the denying district, rather than on the academic merit of the proposed school or the demonstrated needs of the communities to be served, constituting a form of regulatory capture that prioritizes institutional self-interest over the educational welfare of children.

3. Communities in close geographic proximity to Federal enclaves, including working-class and minority-majority communities such as San Ysidro in San Diego County, California—situated adjacent to Naval Outlying Landing Field Imperial Beach and associated GSA-managed buffer and surplus properties—suffer from chronically underperforming local educational agencies while simultaneously being denied viable public school alternatives through the exercise of the discriminatory charter denial authority described in paragraph (2).
4. The constitutional authority vested in Congress under Article IV, Section 3, Clause 2 of the Constitution of the United States provides a legitimate, affirmative, and constitutionally sound basis for Congress to authorize the establishment of high-quality public charter schools on eligible Federal land, creating an accountable and academically rigorous alternative pathway for underserved families without displacing, preempting, or otherwise impairing state educational authority over non-Federal lands.

(b) PURPOSES.

The purposes of this Act are—

1. to establish a Federal charter school authorization pathway for eligible Federal lands that is independent of state and local educational agency political interference; 2. to provide working-class and lower-income families residing in federally impacted communities with access to high-quality public school alternatives;
3. to ensure that Federally authorized charter schools meet or exceed the academic standards applicable in the host state;
4. to resolve the funding dependencies that have historically prevented Federal educational choice initiatives from achieving financial independence from hostile state funding mechanisms; and
5. to protect the sovereign educational authority of federally recognized Indian tribes, which shall not be subject to this Act absent an affirmative invitation by tribal resolution.

SECTION 3. AMENDMENTS TO THE DEPARTMENT OF EDUCATION ORGANIZATION ACT.

(a) IN GENERAL.

The Department of Education Organization Act (20 U.S.C. 3401 et seq.) is amended by inserting after section 209 the following new section:

“SECTION 209A. AUTHORITY TO AUTHORIZE FEDERAL LAND CHARTER SCHOOLS. “(a) AUTHORIZATION.” The Secretary of Education is authorized to—

1. receive, review, and act upon petitions submitted by eligible charter school applicants seeking to establish and operate public charter schools on eligible Federal land; 2. approve, conditionally approve, or deny such petitions based on criteria established under this section;
3. enter into charter agreements of an initial term of five (5) years, renewable upon satisfactory academic and operational performance review;
4. conduct ongoing oversight, including academic performance review, financial audit, and governance evaluation, of all schools authorized under this section; and
5. revoke any charter agreement upon a finding of material breach, sustained academic failure, financial mismanagement, or failure to protect the health, safety, or civil rights of enrolled students.

“(b) PETITION REQUIREMENTS.” An applicant shall submit a petition that includes, at minimum—

1. a detailed educational plan, including proposed curriculum, instructional model, and measurable annual academic performance targets;
2. a five-year operating budget and financial sustainability plan;
3. a governance structure plan, including proposed board composition and conflict-of-interest policies;
4. a student enrollment and outreach plan demonstrating intent to serve students from the surrounding community, with particular attention to lower-income families; 5. documentation of proposed use of eligible Federal land, including a facilities plan meeting the standards described in section 6 of this Act; and
6. an executed or conditional land-use agreement with the relevant Federal agency controlling the proposed site.

“(c) REVIEW STANDARDS.” The Secretary shall evaluate petitions based solely on—

1. the academic quality, rigor, and feasibility of the proposed educational program; 2. the financial soundness and sustainability of the proposed operating model;
3. the demonstrated or reasonably projected need for educational alternatives in the target community;
4. the qualifications and demonstrated capacity of the founding governing board and proposed leadership; and
5. compliance with applicable Federal civil rights laws, including Title VI of the Civil Rights Act of 1964 and the Individuals with Disabilities Education Act.

“(d) PROHIBITED REVIEW CRITERIA.” The Secretary shall not deny a petition based on—

1. the projected fiscal or enrollment impact on any state or local educational agency; 2. the educational philosophy, instructional model, or curricular approach of the proposed school; or
3. the opposition of any state agency, local educational agency, or school board.

“(e) FEDERAL PREEMPTION.” A charter school authorized under this section shall not be required to obtain authorization from any state or local educational agency. State charter authorization laws shall not apply to schools on eligible Federal land. Nothing in this subsection shall be construed to exempt Federally authorized charter schools from state academic content standards or Federal civil rights obligations as provided in section 7 of this Act.”

SECTION 4. ELIGIBLE FEDERAL LAND DEFINED.

(a) DEFINITION.

For purposes of this Act, the term “eligible Federal land” means real property— 1. owned by the United States Government or held in trust for the United States; that is—

- (a) a domestic military installation or a buffer zone, outlying field, or annex thereof, including without limitation Naval Outlying Landing Field Imperial Beach, California, and similar installations where the relevant military department determines that a compatible joint use arrangement is consistent with the military mission and poses no threat to national security or operational readiness; or
 - (b) real property under the custody and control of the General Services Administration that has been designated as surplus property under the Federal Property and Administrative Services Act of 1949 (40 U.S.C. 101 et seq.), or property that the Administrator of General Services determines is available for compatible public use without material interference with Federal operations;
2. that is located within, or within reasonable transportation proximity of, a community in which a significant proportion of school-age children are enrolled in local educational agencies that have received an accountability rating of “Comprehensive Support and Improvement” or equivalent designation for two or more consecutive years; and that is not—
- (a) land held in trust for a federally recognized Indian tribe or individual tribal member, or land subject to tribal treaty rights, unless the governing body of the applicable tribe adopts a formal resolution explicitly inviting the establishment of a Federally authorized charter school on such land; or
 - (b) land designated as a National Park, National Monument, National Wilderness Area, or land subject to statutory conservation restrictions that prohibit permanent or semi-permanent structures.

(b) JOINT USE AGREEMENTS REQUIRED.

The Secretary shall not authorize a charter school on eligible Federal land unless the Secretary

has obtained a written joint use or land use agreement from the Federal agency with primary jurisdiction over the relevant property.

(c) PRIORITY COMMUNITIES.

The Secretary shall give priority consideration to proposed schools serving communities where—

2. the local educational agency has denied one or more charter school petitions within the preceding seven years on grounds other than demonstrated failure to meet academic or operational standards; and
3. The community is located in a state where Federal land ownership constitutes 30 percent or more of the state's total land area.

SECTION 5. FEDERAL PER-PUPIL FUNDING MECHANISM.

(a) FINDINGS ON FUNDING INDEPENDENCE.

Congress finds that the effectiveness of Federal charter authorization under this Act requires that Federally authorized charter schools be financially independent of state and local educational agency funding mechanisms, and that the Impact Aid program administered under Title VIII of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7701 et seq.) provides an appropriate and constitutionally sound funding vehicle for this purpose.

(b) FEDERAL CHARTER SCHOOL PER-PUPIL ALLOCATION (FCPA).

(1) ESTABLISHMENT.

There is hereby established within the Impact Aid program a new subprogram to be known as the “Federal Charter School Per-Pupil Allocation” (hereinafter “FCPA”), which shall provide direct Federal funding to charter schools authorized under this Act.

(2) ALLOCATION AMOUNT.

Subject to appropriation, the annual per-pupil allocation shall be equal to the greater of—

- (a) 100 percent of the average per-pupil expenditure of the local educational agency serving the geographic attendance area in which the Federally authorized charter school is located; or
- (b) the statewide average per-pupil expenditure for the host state, as reported in the most recent Common Core of Data published by the National Center for Education Statistics;
multiplied by a needs-based adjustment factor of 1.15 for schools in which more than 50 percent of enrolled students qualify for free or reduced-price lunch.

(3) SUPPLEMENTAL SPECIAL EDUCATION FUNDING.

Schools authorized under this Act shall receive supplemental funding under Part B of the Individuals with Disabilities Education Act (20 U.S.C. 1411 et seq.) calculated on the same per-child basis as local educational agencies in the host state.

(4) DIRECT FEDERAL DISBURSEMENT.

FCPA funds shall be disbursed directly by the Secretary to the governing board of each authorized charter school. No state or local educational agency shall have authority to—

- (a) intercept, redirect, withhold, or condition the disbursement of FCPA funds;
- (b) require matching contributions or cost-sharing from FCPA-funded schools; or
- (c) treat FCPA funds as a factor in calculating state aid or categorical funding.

(5) PROHIBITION ON SUPPLANTING.

FCPA funds shall supplement, and not supplant, any Federal funding to which students enrolled in Federally authorized charter schools are otherwise entitled.

(c) AUTHORIZATION OF APPROPRIATIONS.

They are authorized to be appropriated to carry out the FCPA such sums as may be necessary for fiscal year 2025 and each of the five succeeding fiscal years.

SECTION 6. FACILITIES STANDARDS AND CONSTRUCTION REQUIREMENTS.

(a) APPLICABLE BUILDING STANDARDS.

School facilities on eligible Federal land pursuant to this Act shall—

- 1. meet or exceed the construction and life-safety standards of the International Building Code as adopted and enforced by the relevant Federal agency;
- 2. comply with the Americans with Disabilities Act Accessibility Guidelines (36 C.F.R. Part 1191, Appendices B and D);
- 3. comply with applicable Federal fire safety standards; and
- 4. meet applicable ASHRAE 62.1 ventilation and ASHRAE 90.1 energy efficiency standards.

(b) STATE CONSTRUCTION CODE INAPPLICABILITY.

Because eligible Federal land constitutes Federal sovereign property subject to plenary congressional authority under Article IV, Section 3, Clause 2 of the Constitution, state school construction codes, including without limitation the California Field Act (California Education Code sections 17280 et seq.), shall not apply to school facilities on eligible Federal land pursuant to this Act.

(c) MODULAR AND PREFABRICATED STRUCTURES.

The Secretary, in consultation with the General Services Administration, shall develop and publish within 180 days of enactment standard specifications for modular and prefabricated school facility configurations that—

- 1. satisfy all applicable Federal standards under subsection (a);
- 2. are capable of deployment within a period not to exceed 14 months from the date of charter approval;
- 3. provide for permanent or semi-permanent installation meeting all applicable structural

and life-safety requirements; and

4. include classroom, administrative, library, cafeteria, gymnasium, and outdoor recreational components scaled to serve student populations of 200, 400, and 600 students.

See Appendix C for illustrative site plan and building program summary.

SECTION 7. ACADEMIC ACCOUNTABILITY AND STANDARDS.

(a) HOST STATE ACADEMIC STANDARDS — CONTENT ONLY.

Each charter school authorized under this Act shall—

1. adopt and implement academic content standards in English language arts, mathematics, and science that are equal to or more rigorous than the content standards adopted by the host state;
2. develop and administer its own internally designed summative assessments in core academic subjects, aligned to the content standards adopted pursuant to paragraph (1), the results of which shall be reported publicly by student subgroup; and
3. comply with all reporting requirements of section 1111 of the Elementary and Secondary Education Act of 1965 applicable to charter schools, except that no school authorized under this Act shall be required to administer any state-designed, state-contracted, or state-administered summative assessment, including without limitation the California Assessment of Student Performance and Progress (CAASPP) or any successor state assessment program.

(a)(4) RATIONALE FOR ASSESSMENT INDEPENDENCE.

Congress finds that requiring Federally authorized charter schools to participate in state-administered assessment systems would subject such schools to the ongoing administrative jurisdiction and political influence of state educational agencies whose demonstrated conduct has been inimical to the interests of the families these schools are designed to serve. Academic independence from state assessment infrastructure is therefore essential to the structural integrity and long-term political independence of schools authorized under this Act.

(b) OFFICE OF FEDERAL CHARTER OVERSIGHT (OFCO).

(1) ESTABLISHMENT.

There is hereby established within the Department of Education an “Office of Federal Charter Oversight” (hereinafter “OFCO”), which shall be headed by a Director appointed by the Secretary and confirmed by the Senate.

(2) FUNCTIONS.

OFCO shall—

- (a) conduct annual academic performance reviews using the school's own internally administered assessment data, nationally norm-referenced assessment results

(including without limitation the NWEA MAP, Stanford Achievement Test, or equivalent nationally recognized instruments selected by the school's governing board), graduation and promotion rates, and post-secondary enrollment

data—provided that no state-administered assessment shall be required as a component of any OFCO review;

- (b) conduct triennial comprehensive reviews of each authorized school's governance, financial management, and compliance with applicable Federal law;
- (c) receive and investigate complaints from parents, students, and community members;
- (d) recommend to the Secretary renewal, conditional renewal, or revocation of charter agreements based on performance review findings; and
- (e) publish an annual public report on the academic performance, enrollment demographics, and financial condition of all schools authorized under this Act.

(3) INDEPENDENCE FROM LOCAL INTERFERENCE.

No state educational agency, local educational agency, school board, or other state or local governmental entity shall have authority to—

- (a) compel, direct, or participate in an OFCO review or audit;
- (b) condition state cooperation on receipt of academic performance data beyond that required to be publicly reported; or
- (c) impose sanctions, penalties, or operational restrictions on a Federally authorized charter school based on the results of any state-level accountability review.

(c) CIVIL RIGHTS COMPLIANCE.

All charter schools authorized under this Act shall be subject to the full enforcement authority of the Office for Civil Rights of the Department of Education with respect to compliance with—

1. Title VI of the Civil Rights Act of 1964 (42 U.S.C. 2000d et seq.);
2. Title IX of the Education Amendments of 1972 (20 U.S.C. 1681 et seq.);
3. Section 504 of the Rehabilitation Act of 1973 (29 U.S.C. 794);
4. the Americans with Disabilities Act of 1990 (42 U.S.C. 12101 et seq.); and
5. the Equal Educational Opportunities Act of 1974 (20 U.S.C. 1701 et seq.).

SECTION 8. ENROLLMENT AND ANTI-DISCRIMINATION REQUIREMENTS.

(a) OPEN ENROLLMENT.

Each charter school authorized under this Act shall enroll students through a publicly advertised, open enrollment process without regard to academic ability, athletic ability, disability status, race, color, national origin, sex, religion, or immigration status.

(b) LOTTERY REQUIREMENT.

In the event that the number of applicants exceeds the school's capacity, the school shall employ a random selection lottery, subject to the following permissible enrollment preferences, applied in the following order of priority—

1. returning students and their siblings;
2. children of full-time school employees;
3. students residing within the attendance boundary of the local educational agency serving the geographic area in which the school is located; and
4. students residing within the host state.

(c) ENGLISH LEARNER AND SPECIAL EDUCATION SERVICES.

Each Federally authorized charter school shall provide—

1. English language development services to enrolled English learner students that meet the requirements of Title III of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6801 et seq.); and
2. special education and related services to enrolled students with disabilities consistent with the requirements of the Individuals with Disabilities Education Act (20 U.S.C. 1400 et seq.) and applicable Federal regulations.

SECTION 9. TRIBAL SOVEREIGNTY PROTECTIONS.

(a) NON-APPLICABILITY TO TRIBAL LANDS.

Nothing in this Act shall be construed to authorize the establishment of any Federally authorized charter school on—

- (a) land held in trust by the United States for a federally recognized Indian tribe or individual Indian;
- (b) land subject to tribal treaty rights, including rights of occupancy, use, or access; or
- (c) land over which a federally recognized tribe exercises governmental jurisdiction under applicable Federal law;

without the express and affirmative prior consent of the governing body of the relevant tribe, as documented by formal tribal resolution.

(b) TRIBAL PARTNERSHIP OPTION.

A federally recognized Indian tribe that wishes to partner in the establishment of a Federally authorized charter school on eligible Federal land may—

- (a) adopt a tribal resolution inviting such partnership and specifying the terms thereof;
- (b) designate tribal representatives to participate in the charter petition process and school governance; and
- (c) negotiate a memorandum of understanding with the Secretary governing the terms of the tribal partnership, which may include provisions for culturally responsive curriculum, tribal language instruction, and tribal community employment preferences.

SECTION 9A. GOVERNING BOARD STRUCTURE, ELECTIONS, AND RESIDENCY.

(a) BOARD COMPOSITION.

The governing board of each charter school authorized under this Act shall consist of five (5) elected Trustees, serving in accordance with the provisions of this section.

(b) ELECTION OF TRUSTEES.

(1) DEMOCRATIC ELECTION REQUIREMENT.

Each Trustee shall be elected by a direct vote of eligible voters, defined as— (A) parents or legal guardians of a student currently enrolled in the school; and

(B) full-time employees of the school who are residents of the district service area as defined in subsection (c).

Provided, however, that no employee eligible to vote under subparagraph (B) shall be eligible to stand as a candidate for Trustee, consistent with the candidate eligibility restrictions established in subsection (b)(4) of this section.

(2) ELECTION PROCEDURES.

The Secretary shall promulgate regulations establishing standardized election procedures for Trustee elections, which shall include—

- (A) public notice of elections no fewer than 45 days prior to the election date;
- (B) a candidate nomination period of no fewer than 21 days;
- (C) secret ballot voting conducted in person, by mail, or by a secure electronic method approved by OFCO;
- (D) independent tabulation of results by a neutral third party designated by OFCO; and
- (E) public certification of results within 10 days of the election.

(3) INITIAL BOARD.

The initial governing board shall be appointed by the Secretary from among qualified candidates

identified in the charter petition, and shall serve only until the first duly conducted Trustee election, which shall occur no later than 12 months after the school's opening date.

(4) CANDIDATE ELIGIBILITY — PROHIBITION ON EMPLOYEE CANDIDACY. (A) GENERAL PROHIBITION. No individual who is, or has been within the preceding 24 months, employed in any capacity—whether full-time, part-time, or contractual, or compensated in any form—by—

- (i) the Federally authorized charter school for which the Trustee seat is sought;
- (ii) any other charter school authorized under this Act; or

(iii) any local educational agency, state educational agency, school district, or public or private elementary or secondary school operating within the geographic boundaries of the district service area as defined in subsection (c);

shall be eligible to stand as a candidate for, or be appointed to, the governing board of a Federally authorized charter school under this Act.

(B) SCOPE OF DISQUALIFICATION. For purposes of this subsection, “employed in any capacity” shall include without limitation—

- (i) classroom teachers, instructional aides, and paraprofessionals;
- (ii) administrators, principals, vice principals, and department heads;
- (iii) counselors, psychologists, social workers, and support staff;
- (iv) contracted service providers whose primary contractual duties are performed on school premises; and
- (v) individuals employed by a teachers union, classified employees union, or any other labor organization that holds a collective bargaining agreement with any school or educational agency described in subparagraph (A).

(C) FAMILY MEMBER RESTRICTION. No immediate family member of a current employee of the Federally authorized charter school—defined as a spouse, domestic partner, parent, sibling, or child—shall be eligible to stand as a candidate for or serve on the governing board of that same school.

(D) POST-SERVICE EMPLOYMENT RESTRICTION. A Trustee who has completed or vacated their term of service shall not accept employment with the Federally authorized charter school on whose board they served for a period of 24 months following the conclusion of their board service.

(E) AFFIRMATIVE DISCLOSURE AND CERTIFICATION. Each candidate for Trustee shall submit to OFCO a sworn written certification attesting that they are not disqualified under any provision of this subsection. A candidate who knowingly submits a false certification shall be—

- (i) immediately disqualified from the election or removed from the board if already seated; and

(ii) referred to the appropriate Federal authority for investigation of potential violations of 18 U.S.C. § 1001 (false statements to Federal agencies).

(F) **WAIVER PROHIBITED.** The disqualifications established under this subsection are mandatory and structural. No waiver, variance, or exception shall be granted by OFCO, the Secretary, or any other Federal official.

(c) RESIDENCY REQUIREMENT.

(1) IN GENERAL.

Each Trustee shall, throughout their entire term of office, maintain primary legal residence within the geographic boundaries of the local educational agency attendance area in which the Federally authorized charter school is located, or within a radius of 10 miles of the school's primary campus, whichever is greater.

(2) VERIFICATION.

Each Trustee candidate shall submit to OFCO a sworn declaration of residency supported by at least two of the following documents—

- (A) a current government-issued photo identification reflecting the claimed residential address;
- (B) a current motor vehicle registration or driver's license;
- (C) a current utility bill, lease agreement, or mortgage statement; or
- (D) a current voter registration record.

(3) LOSS OF RESIDENCY.

A Trustee who ceases to maintain qualifying residency shall notify OFCO and the board chair in writing within 30 days and shall vacate their seat. A vacancy created by loss of residency shall be filled by special election held within 90 days.

(d) TERM LIMITS.

(1) TERM LENGTH.

Each Trustee shall serve a term of two (2) years.

(2) MAXIMUM TERMS.

No individual shall serve more than four (4) consecutive two-year terms. An individual who has served four consecutive terms shall be eligible for re-election only after a minimum absence from the board of two (2) full consecutive terms.

(3) STAGGERED TERMS.

Trustee seats shall be divided into two classes: three seats (Class A) and two seats (Class B). Class A seats shall be elected in odd-numbered years and Class B seats in even-numbered years, beginning with the school's first regular election cycle.

(e) BOARD POWERS AND DUTIES.

The governing board shall have exclusive authority over—

- (1) hiring, evaluation, and termination of the school's chief executive or principal;
- (2) adoption of the school's annual operating budget;
- (3) selection of curriculum, instructional materials, and assessment instruments, consistent with the academic standards requirements of section 7(a) of this Act;
- (4) adoption of school policies governing student conduct, enrollment, and school culture; and
- (5) entering into contracts on behalf of the school, subject to OFCO financial reporting requirements under section 7(b).

(f) CONFLICT OF INTEREST AND ETHICS.

Each Trustee shall annually file a public disclosure of financial interests with OFCO, and shall recuse themselves from any board vote in which they hold a direct personal financial interest. OFCO shall establish by regulation a code of ethics applicable to all Trustee conduct.

(g) REMOVAL.

A Trustee may be removed from office prior to the expiration of their term only by—

- (1) a recall election initiated by petition of no fewer than 20 percent of eligible voters, conducted in accordance with procedures established by OFCO regulation; or
- (2) a finding by the Director of OFCO of material violation of applicable Federal ethics or conflict-of-interest requirements, subject to notice and opportunity for hearing before the Director.

SECTION 9B. SUPERINTENDENT AND PRINCIPAL QUALIFICATIONS — DEMONSTRATED COMPETENCE STANDARD.

(a) GOVERNING PRINCIPLE.

Congress finds that the imposition of state-mandated credentialing requirements on the leadership of Federally authorized charter schools would reintroduce through administrative means the same jurisdictional control over Federal enclaves that this Act is expressly designed to foreclose. The selection of a superintendent or principal shall therefore be governed exclusively by a standard of demonstrated competence, not credential accumulation, and no state licensure, certification, or preparation program requirement shall apply to any leadership position in a Federally authorized charter school.

(b) STATE LICENSURE INAPPLICABILITY.

No Federally authorized charter school shall be required to employ a superintendent, principal, assistant principal, or chief executive officer who holds—

- (1) a state-issued administrator license or certificate of any kind;

- (2) a teaching license or certificate issued by any state educational agency; or
- (3) a degree from a state-approved or state-accredited educational leadership preparation program.

The governing board shall have sole and exclusive authority to establish and apply qualifications for its superintendent, principal, and other school leadership positions, subject only to the minimum Federal competency criteria established in subsection (c) and the disqualification provisions of subsection (d).

(c) FEDERAL MINIMUM COMPETENCY CRITERIA.

The governing board shall, prior to hiring a superintendent or principal, conduct and document a formal competency review assessing, at minimum, the following demonstrated competency domains:

(1) INSTRUCTIONAL LEADERSHIP COMPETENCY.

Evidence that the candidate has demonstrated the ability to improve student academic outcomes in a leadership, management, or instructional role, which may be established by—

- (A) documented student achievement gains in a school, program, or organization under the candidate's direct leadership or management;
- (B) published research, curriculum development, or instructional design work with demonstrated impact on learner outcomes; or
- (C) military, corporate, nonprofit, or governmental leadership experience in which the candidate directed training, workforce development, or performance improvement

programs serving populations analogous in size and complexity to the school to be led.

(2) ORGANIZATIONAL MANAGEMENT COMPETENCY.

Evidence that the candidate has demonstrated the ability to manage a complex organization, which may be established by—

- (A) prior experience as a chief executive, chief operating officer, executive director, commanding officer, or equivalent senior leader of an organization with an annual operating budget of not less than \$1,000,000 and a staff of not fewer than 10 persons;
- (B) prior experience as a school principal, assistant principal, department head, or equivalent academic leadership role in a public, private, or charter school setting; or
- (C) demonstrated equivalent organizational leadership experience in the military, private sector, nonprofit sector, or public administration, as determined by the governing board.

(3) COMMUNITY AND FAMILY ENGAGEMENT COMPETENCY.

Evidence that the candidate has demonstrated the ability to build trust and sustained engagement with families, community members, and external stakeholders, which may be established by—

- (A) documented outreach, partnership, or community organizing experience;

- (B) demonstrated proficiency in Spanish or another language spoken by a significant portion of the school's target enrollment community; or
- (C) personal background, life experience, or prior service demonstrating deep familiarity with the socioeconomic and cultural context of the community to be served.

(4) FINANCIAL STEWARDSHIP COMPETENCY.

Evidence that the candidate has demonstrated the ability to manage public or organizational funds responsibly, which may be established by—

- (A) prior experience overseeing a budget of not less than \$500,000 in a fiduciary, executive, or administrative capacity;
- (B) formal training or professional certification in accounting, financial management, public administration, or equivalent field; or
- (C) demonstrated equivalent financial management experience as determined by the governing board.

(5) PROFESSIONAL K–12 EXPERIENCE AS SUFFICIENT INDEPENDENT QUALIFICATION.

Notwithstanding the multi-domain competency review required under subsections (c)(1) through (c)(4), the governing board may determine that a candidate has satisfied the Federal minimum competency criteria in full upon documented finding that the candidate possesses—

- (A) TEACHING EXPERIENCE. Not fewer than three (3) years of full-time professional teaching experience in a K–12 school setting, whether public, private, charter, parochial, or Department of Defense Education Activity (DoDEA), in which the candidate held primary instructional responsibility for a classroom or subject area; or
- (B) SCHOOL-BASED PROFESSIONAL EXPERIENCE. Not fewer than five (5) years of full-time professional experience working within a K–12 school or school system in any of the following capacities—
 - (i) instructional coach, curriculum coordinator, or academic interventionist;
 - (ii) school counselor, social worker, or student support specialist;
 - (iii) department head, grade-level lead, or academic dean;
 - (iv) assistant principal, dean of students, or school operations director;
 - (v) special education coordinator or director; or
 - (vi) any other school-based professional role in which the candidate worked in direct service to students, teachers, or families within a K–12 institutional setting; or
- (C) COMBINED EXPERIENCE. A combination of teaching experience under subparagraph (A) and school-based professional experience under subparagraph (B) that, taken together, totals not fewer than five (5) years of full-time K–12 professional service.

(6) GOVERNING BOARD DETERMINATION.

Where a candidate qualifies under subsection (c)(5), the governing board shall document its finding in writing, identifying the specific experience, institutions, roles held, duration of service,

and where available, documented evidence of student, school, or programmatic outcomes achieved during that period.

(d) MANDATORY DISQUALIFICATIONS.

Notwithstanding the competency-based selection authority granted under this section, no individual shall be eligible for appointment as superintendent or principal who—

- (1) has been convicted of a felony offense under Federal or state law;
- (2) has been found by a court of competent jurisdiction to have engaged in fraud, misappropriation of public funds, or material financial misconduct in connection with any educational institution, government program, or nonprofit organization;
- (3) has had a professional license of any kind revoked for cause by any state licensing authority; or
- (4) is listed on any Federal or state debarment registry or excluded from participation in Federal programs under applicable Federal law.

(e) DOCUMENTATION AND PUBLIC TRANSPARENCY.

- (1) The governing board shall maintain a written competency evaluation record for each superintendent or principal hired under this section.
- (2) A summary of each superintendent's and principal's qualifications shall be published on the school's public website within 30 days of appointment and updated annually.
- (3) OFCO shall review the governing board's competency evaluation documentation as part of each triennial comprehensive review.

(f) PROFESSIONAL DEVELOPMENT REQUIREMENT.

Each superintendent and principal shall complete not fewer than 40 hours of professional development annually in domains relevant to their role, including without limitation instructional leadership, school finance, special education law, civil rights compliance, and family engagement. The governing board shall select professional development providers without restriction based on state approval status.

(g) CONGRESSIONAL INTENT.

It is the intent of Congress that the competency framework established under this section serve as a model demonstrating that school leadership excellence is produced by talent, experience, and commitment to children—not by the accumulation of state-issued credentials that function, in practice, as barriers to entry protecting incumbent educational bureaucracies from competition by nontraditional leaders. Professional experience in K–12 schools—whether in the classroom, in counseling, in curriculum, or in administration—constitutes genuine qualification for school leadership and shall be treated as such under this Act.

SECTION 10. REGULATORY AUTHORITY.

The Secretary of Education shall promulgate final regulations necessary to carry out this Act not later than 18 months after the date of enactment. Such regulations shall include, at a minimum—

- (1) application and petition procedures and forms;
- (2) standards and criteria for petition review and approval;
- (3) charter agreement templates and standard terms;
- (4) performance review procedures and timelines for OFCO;
- (5) FCPA disbursement procedures, audit requirements, and financial reporting standards;
- (6) procedures for charter renewal and revocation, including notice and opportunity to cure provisions; and
- (7) procedures for community engagement and public notice prior to the approval of any charter school petition under this Act.

SECTION 11. SEVERABILITY.

If any provision of this Act, or the application of any provision to any person or circumstance, is held to be unconstitutional or otherwise invalid by a Federal court of competent jurisdiction, the remaining provisions of the Act and their application to other persons and circumstances shall not be affected thereby.

SECTION 12. EFFECTIVE DATE.

This Act shall take effect 90 days after the date of enactment, except that—

- (1) the regulatory authority provided under section 10 shall take effect upon enactment; and
- (2) the Secretary is authorized to receive and provisionally review charter petitions upon enactment, with final approvals contingent on the effective date of final regulations.

Legislative Drafting Note

This bill is drafted for policy discussion and public debate purposes. Enactment would require coordination with the Department of Defense, the General Services Administration, the Bureau of Indian Affairs, and the House Committee on Education and the Workforce and Senate Committee on Health, Education, Labor, and Pensions (HELP). Constitutional review under the Spending Clause and Property Clause would be advisable prior to formal introduction.

APPENDIX A — FACILITIES DEPLOYMENT TIMELINE

KENIA PERAZA ACT

Modular K–8 Campus — Federal Land Deployment Timeline

Target Site: NOLF Imperial Beach Buffer Zone / GSA Surplus Parcel — San Ysidro, CA

The following timeline establishes the realistic deployment schedule for a 400-student modular K–8 campus on eligible Federal land under the Kenia Peraza Act, from charter petition approval through the first day of instruction. All phases operate entirely outside California Field Act jurisdiction, California zoning authority, and Sweetwater Union High School District approval processes. The Federal authorizer (Secretary of Education via OFCO) and the relevant Federal land agency (Department of the Navy or GSA) are the only governmental approvers required.

PHASE 0	PRE-PETITION (Months –6 to 0)	<i>Founding Board / Sec. of Ed</i>
Months –6 to –4	Founding board formed. Community outreach in San Ysidro / Otay Ranch. Enrollment need survey. Educational plan drafted. Legal counsel retained for Federal land process.	<i>Founding Board</i>
Months –4 to –2	Site assessment of NOLF IB buffer zone and/or GSA surplus parcel. Joint use agreement negotiations initiated with Navy or GSA. Modular campus vendor RFP issued.	<i>Founding Board + GSA/DoN</i>
Months –2 to 0	Charter petition finalized and submitted to OFCO. Five-year budget model completed. Governing board elections scheduled. Modular vendor selected.	<i>Founding Board</i>
PHASE 1	FEDERAL AUTHORIZATION (Months 1–3)	<i>OFCCO / Secretary of Education</i>
Month 1	OFCCO petition review opens. Public comment period (30 days). Site visit by OFCCO reviewers. No California agency participation required or permitted.	<i>OFCCO</i>
Month 2	OFCCO issues findings. The Secretary of Education issues conditional charter approval. Joint use / land use agreement executed with DoN or GSA. FCPA funding authorization initiated.	<i>Secretary / DoN / GSA</i>

Month 3	Charter agreement signed (5-year term). First Trustee election held. The governing board assumes authority. Principal/Superintendent search launched under Section 9B competence standard.	<i>Governing Board / OFCO</i>
PHASE 2	SITE PREPARATION (Months 3–6)	<i>GSA / DoN / Modular Contractor</i>
Month 3–4	Site clearing and grading on Federal parcels. Utility connections established. Foundation pads and anchor systems installed per IBC standards. No California building permit required.	<i>Modular Contractor / Federal Agency</i>
Month 4–5	Modular unit fabrication commences off-site. Solar panel arrays and battery storage systems ordered. ADA-compliant ramp and walkway system fabricated.	<i>Modular Contractor</i>
Month 5–6	Underground utility infrastructure completed. Concrete pad finishing. Site security perimeter established. Parking lot graded and marked. Accessible pathways graded.	<i>Modular Contractor</i>
PHASE 3	MODULAR DEPLOYMENT (Months 6–10)	<i>Modular Contractor / Governing Board</i>
Month 6–7	Modular units transported to site. Crane placement of administration building, library, cafeteria, and gymnasium modules. Steel interconnection frames installed.	<i>Modular Contractor</i>
Month 7–8	Classroom wing modules (Wings A–D) placed and anchored. Covered walkway systems connected. Interior rough-in: electrical, HVAC, data cabling, plumbing.	<i>Modular Contractor</i>
Month 8–9	Solar panel arrays installed on all rooftops (188 kW total). Battery storage units (200 kWh) installed and commissioned. Grid tie-in and energy independence testing.	<i>Solar Contractor / Utility</i>
Month 9–10	Interior finishes: flooring, cabinetry, lighting, whiteboards, technology infrastructure. ADA ramps and accessible restrooms completed and inspected. Exterior landscaping and play surfaces.	<i>Modular Contractor</i>
PHASE 4	STAFFING & ENROLLMENT (Months 8–12)	<i>Governing Board / OFCO</i>
Month 8–9	Superintendent and Principal appointed by the Governing Board under Section 9B demonstrated competence standards. No state credential required. Core instructional staff recruited.	<i>Governing Board</i>

Month 9–10	Open enrollment lottery conducted per Section 8(b). Priority: San Ysidro / Otay Mesa attendance zone families. 400 students enrolled. IEP and ELL needs assessments completed.	<i>Governing Board / OFCO</i>
Month 10–11	Staff onboarding, professional development, curriculum adoption. Nationally norm-referenced assessment baseline established. Family orientation events conducted.	<i>School Leadership</i>

Month 11–12	Federal life-safety certifications under IBC and Federal fire code. OFCO pre-opening compliance review. FCPA first disbursement confirmed.	<i>OFCO / Federal Agency</i>
PHASE 5	✓ FIRST DAY OF INSTRUCTION (Month 12–14) — 400 Students. 24 Classrooms. Full Modular Campus Operational. ✓ Energy independent: 188 kW solar + 200 kWh battery storage. ✓ Zero California Field Act compliance required. ✓ Zero Sweetwater Union or San Ysidro School District approval obtained. ✓ First community to benefit from the Kenia Peraza Act.	<i>Governing Board / School Leadership</i>

Note: Timeline assumes concurrent processing of Federal land use agreement and OFCO petition review. Actual schedule may compress to 10–11 months under optimal coordination or extend to 16 months under complex site conditions. All timelines are independent of California state agency action.

APPENDIX B — BUILDING PROGRAM SUMMARY

KENIA PERAZA ACT — MODULAR K–8 CAMPUS

Building Program Summary — 400-Student Configuration

Administration	Type-A Admin Module	3,200 SF	Staff: 25	48 kW
Classroom Wing A (K–2)	Type-B Classroom ×6	5,400 SF	Students: 150	18 kW
Classroom Wing B (3–5)	Type-B Classroom ×6	5,400 SF	Students: 150	18 kW
Classroom Wing C (6–8)	Type-B	5,400 SF	Students: 100	18 kW

	Classroom ×6			
Classroom Wing D (Spc/Elec)	Type-B Classroom ×6	5,400 SF	Students: 50 + Staff	18 kW
Library & Media Center	Type-C Media Module	2,800 SF	100 concurrent	20 kW
Cafeteria	Type-D Dining Module	3,200 SF	200 seats	20 kW
Gymnasium	Type-E Gym Module	4,200 SF	400 + stage	28 kW
Student Services / Counseling	Type-A Admin Module	1,800 SF	Staff: 8	0 kW *
Mechanical & Utility	Utility Module	600 SF	N/A	N/A
Covered Walkways (all)	Steel + Polycarbonate	1,200 SF	N/A	N/A

* The Student Services building shares solar feed from the Administration array. Battery storage: 4 × 50 kWh units = 200 kWh total capacity, providing approximately 18–22 hours of energy independence from the grid under normal operational loads.

Energy Independence Summary

Rooftop Solar PV (total)	188 kW DC / ~150 kW AC	<i>Primary daytime power — all buildings</i>
Battery Storage (total)	4 × 50 kWh = 200 kWh	<i>18–22 hrs independence / evening / outage</i>
Grid Tie-In (Federal utility)	Standard metered connection	<i>Backup / net metering / peak demand</i>
EV Charging (staff lot)	4 × Level 2 stations	<i>Staff parking — solar-fed</i>
Annual Solar Generation (est.)	~320,000 kWh/yr	<i>Exceeds campus demand ~40%</i>

APPENDIX C — SITE PLAN & ARCHITECTURAL BLUEPRINT

KENIA PERAZA ACT — MODULAR K-8 CAMPUS

Site Plan — Floor Layout — Solar & Battery Infrastructure

Scale: 1" = 20 ft | Total Site: ±1.8 Acres | Capacity: 400 Students | Total Solar: 188 kW | Battery: 200 kWh

Blueprint prepared for policy illustration purposes. Actual site plan will require Federal surveying, geotechnical assessment, and joint use agreement with the relevant Federal land agency (Department of the Navy or GSA). All dimensions are approximate. Building placement is optimized for solar south-facing orientation, ADA accessibility, and emergency vehicle access on all four sides.

END OF DOCUMENT

The Kenia Peraza Act — Federal Land Educational Opportunity